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Case Number: 21STCV08495 Hearing Date: July 20, 2026 Dept: 408

Defendants Crush Materials

Corporation and Christine Rush's Motion for Summary Judgment, or in the alternative, Summary Adjudication as to Plaintiff Eric Marquez is DENIED.

I.

BACKGROUND

On March 4, 2021, Plaintiffs Eric Marquez ("Marquez") and Melissa Davis ("Davis", collectively "Plaintiffs") filed a complaint against Defendants Crush Materials Corporation ("Crush"), Associated Ready Mixed Concrete, Inc. ("Ready Mixed"), and Christine Rush ("Rush", collectively "Defendants") alleging causes of action for:

1.

Failure to Pay

Proper Wages;

2.

Wrongful

Termination;

3.

Failure to

Provide Rest Periods;

4.

Retaliation for

Exercise of Rights to File Complaint;

5.

Fraudulent

Business Practices;

6.

Failure to Pay

Overtime;

7.

Unfair Business

Practices;

8.

Discrimination

Based on Gender;

9.

Discrimination

Based on Sexual Orientation; and

10.

Discrimination

Based on Race.

On

September 29, 2021, Ready Mixed filed

an answer to Plaintiffs' complaint.

On October 5, 2021, pursuant to Plaintiffs' request,

default was entered against Rush.

On January 20, 2022, the court granted Rush's Motion

to Set Aside/Vacate Default.

On April 8, 2022, the court denied Rush's Petition to Compel Arbitration and Stay Proceedings. On April 13, 2022, Rush filed a Notice of

Appeal as to the denial of her Petition to Compel Arbitration and Stay

Proceedings. On July 12, 2024, Remittitur

was filed affirming the court's order denying Rush's Petition to Compel

Arbitration and Stay Proceedings.

On January 9, 2025, pursuant to Plaintiffs' request, default was entered against Crush.

On June 23, 2025, the court granted Crush's Motion to Set Aside/Vacate Default.

On July 3, 2025, Crush and Rush filed an answer to Plaintiffs' complaint.

On October 7, 2025, the court denied Ready Mixed's Motion to Strike Plaintiffs' demand for jury trial.

On March 12, 2026, Crush and Rush ("Moving Defendants") filed individual Motions for Summary Judgment, or in the alternative, Summary Adjudication against Plaintiffs. On June 12, 2026, Plaintiffs filed individual oppositions. On June 25, 2026, Plaintiffs filed individual amended oppositions.[1] On July 9, 2026, Moving Defendants filed replies.

II.

LEGAL STANDARD

"A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding. The motion may be made at any time after 60 days have elapsed since the general appearance in the action or proceeding of each party against whom the motion is directed or at any earlier time after the general appearance that the court, with or without notice and upon good cause shown, may direct." (Code Civ. Proc., § 437c, subd. (1)(a).)

"[T]he party moving for summary judgment bears the burden of persuasion that there is no triable issue of fact and that he is entitled to judgment as a matter of law. That is because of the general principle that a party who seeks a court's action in his favor bears the burden of persuasion thereon. There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in

accordance with the applicable standard of proof.” (Aguilar v. Atl. Richfield Co. (2001) 25 Cal.4th 826, 850 [citation omitted].)

“[T]he party moving for summary judgment bears an initial burden of production to make a prima facie showing of the reexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact.” (Aguilar, supra, 25 Cal.4th at 850; Smith v. Wells Fargo Bank, N.A. (2005) 135 Cal.App.4th 1463, 1474 [applying the summary judgment standards in Aguilar to motions for summary adjudication].)

“On a summary judgment motion, the court must therefore consider what inferences favoring the opposing party a factfinder could reasonably draw from the evidence. While viewing the evidence in this manner, the court must bear in mind that its primary function is to identify issues rather than to determine issues. Only when the inferences are indisputable may the court decide the issues as a matter of law. If the evidence is in conflict, the factual issues must be resolved by trial.” (Binder v. Aetna Life Ins. Co. (1999) 75 Cal.App.4th 832, 839 [citation omitted].)

“The trial court may not weigh the evidence in the manner of a fact finder to determine whose version is more likely true. Nor may the trial court grant summary judgment based on the court's evaluation of credibility.” (Binder, supra, 75 Cal.App.4th at 840 [citations omitted]; see also Weiss v. People ex rel. Dep't of Transp. (2020) 9 Cal.5th 840, 864 [“Courts deciding motions for summary judgment or summary adjudication may not weigh the evidence but must instead view it in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party”].)

III.

DISCUSSION

Moving Defendants seek summary judgment on the first through seventh and tenth causes of action, in addition to the claim for punitive damages, alleged in the complaint[2] as to Marquez. In the alternative, Moving Defendants move for summary adjudication on

the following issues:

i.

First Cause of Action for Failure to Pay Proper Wages

[Issue No. 1] Moving Defendants are

entitled to summary adjudication of Marquez's First Cause of Action for Failure to Pay Proper Wages because Marquez was admittedly an exempt employee not subject to overtime pay;

ii.

Second Cause of Action for Wrongful Termination

[Issue No. 2] Moving Defendants are

entitled to summary adjudication of Marquez's Second Cause of Action for Wrongful Termination because the underlying discrimination and retaliation claims fail;

iii.

Third Cause of Action for Failure to Provide Rest
Periods

[Issue No. 3] Moving Defendants

are entitled to summary adjudication of Marquez's Third Cause of Action for Failure to Provide Rest Periods because Marquez was admittedly an exempt employee not subject to rest break laws;

iv.

Fourth Cause of Action for Retaliation for Exercise of
Rights to File Complaint

[Issue No. 4] Moving Defendants

are entitled to summary adjudication of Marquez's Fourth Cause of Action for Retaliation for Exercise of Rights to File Complaints because Marquez failed to demonstrate that any protected activity contributed to his termination of employment;

[Issue No. 5] Moving Defendants

are entitled to summary adjudication of Marquez's Fourth Cause of Action for Retaliation for Exercise of Rights to File Complaints because Crush had

legitimate, non-discriminatory motives to terminate Marquez's employment – bankruptcy;

[Issue No. 6] Moving Defendants

are entitled to summary adjudication of Marquez's Fourth Cause of Action for Retaliation for Exercise of Rights to File Complaints because Marquez failed to exhaust administrative remedies;

[Issue No. 7] Moving Defendants are

entitled to summary adjudication of Marquez's Fourth Cause of Action for Retaliation for Exercise of Rights to File Complaints because any unalleged claims are barred by the statute of limitations;

[Issue No. 8] Rush is entitled to

summary adjudication of Marquez's Fourth Cause of Action for Retaliation for Exercise of Rights to File Complaints because Rush cannot be held personally liable for the alleged claims;

v.

Fifth Cause of Action for Fraudulent Business Practices

[Issue No. 9] Moving Defendants are

entitled to summary adjudication of Marquez's Fifth Cause of Action for Fraudulent Business Practices because Marquez's wage and hour claims fail;

vi.

Sixth Cause of Action for Failure to Pay Overtime

[Issue No. 10] Moving Defendants

are entitled to summary adjudication of Marquez's Sixth Cause of Action for Failure to Pay Overtime because Marquez was admittedly an exempt employee not subject to overtime pay;

vii.

Seventh Cause of Action for Unfair Business Practices

[Issue No. 11] Moving Defendants

are entitled to summary adjudication of Marquez's Seventh Cause of Action for Unfair Business Practices because Marquez's wage and hour claims fail;

viii.

Tenth Cause of Action for Discrimination Based on Race

[Issue No. 12] Moving Defendants

are entitled to summary adjudication of Marquez's Tenth Cause of Action for race discrimination because Marquez did not suffer any adverse employment action because of his race;

[Issue No. 13] Rush is

entitled to summary adjudication of Marquez's Tenth Cause of Action for race discrimination because Rush cannot be held personally liable for the alleged claims;

[Issue No. 14] Rush is

entitled to summary adjudication of Marquez's Tenth Cause of Action for race discrimination because Marquez failed to exhaust administrative remedies against Rush;

[Issue No. 15] Rush is

entitled to summary adjudication of Marquez's Tenth Cause of Action for race discrimination because Marquez's claims against Rush are time barred; and

ix.

Claim for Punitive Damages

[Issue No. 16] Marquez's

claim for punitive damages fails as a matter of law because Marquez cannot show that Defendants engaged in malice, oppression, or fraud.

A.

Evidentiary Objections

The court declines to rule on the evidentiary objections submitted, pursuant to Code of Civil Procedure section 437c(q) (i.e., "[i]n granting or denying a motion for summary judgment or summary adjudication, the court need rule only on those objections to evidence that it deems material to its disposition of the motion").

(Code Civ. Proc., §
437c, subd. (q).)

B.

Issues Nos. 12-15 – Discrimination

Based on Race (Tenth Cause of Action)

“Under

the McDonnell Douglas framework, a plaintiff bears the initial burden to establish a prima facie case of race-based discrimination.” (Mackey v. Board of Trustees of California State University (2019) 31 Cal.App.5th 640, 661.) “Generally, the plaintiff must provide evidence that (1) he was a member of a protected class, (2) he was qualified for the position he sought or was performing competently in the position he held, (3) he suffered an adverse employment action, such as termination, demotion, or denial of an available job, and (4) some other circumstance suggests discriminatory motive.” (Guz v. Bechtel Nat. Inc. (2000) 24 Cal.4th 317, 355.) The burden then shifts to the employer to produce evidence of a nondiscriminatory reason for the adverse action. (Moore v. Regents of the University of California (2016) 248 Cal.App.4th 216, 235, citing Guz v. Bechtel National Inc. (2000) 24 Cal.4th 317, 355-356.) At that point, the burden shifts back to the employee to show that the employer’s stated reason was in fact a pretext for a discriminatory act. (Id., citing Guz, supra, 24 Cal.4th at 356.)

However,

the McDonnell Douglas framework is modified in a summary judgment motion for an employment discrimination case, wherein “the employer, as the moving party, has the initial burden to present admissible evidence showing either that one or more elements of plaintiff’s prima facie case is lacking or that the adverse employment action was based upon legitimate, nondiscriminatory factors.” (Serri v. Santa Clara University (2014) 226 Cal.App.4th 830, 861, quoting Hicks v. KNTV Television, Inc. (2008) 160 Cal.App.4th 994, 1003.)

“If

the employer meets its initial burden, the burden shifts to the employee to ‘demonstrate a triable issue by producing substantial evidence that the employer’s stated reasons were untrue or pretextual, or that the employer acted with a discriminatory animus, such that a reasonable trier of fact could conclude that the employer engaged in intentional discrimination or other unlawful action.’” (Serri, supra, 226 Cal.App.4th at 861, quoting Cucuzza v. City of Santa Clara (2002) 104 Cal.App.4th 1031, 1038.)

Moving Defendants argue that Marquez cannot establish a prima facie case of race discrimination as Marquez fails to provide any admissible evidence as to how much his Caucasian coworkers were paid in comparison, Marquez did not inform Rush or any other decision maker at Crush about his Native American ancestry, and there is no evidence that Marquez was not paid more for being part Native American. (MSJ, at pp. 11-12; Undisputed Material Fact ("UMF"), Nos. 17-22.)

As an initial matter, the court notes that Moving Defendants failed to follow the McDonnell Douglas framework as modified for a summary judgment motion to adjudicate Issue No. 12. Thus, Moving Defendants failed to carry their initial burden demonstrating that one or more elements of Marquez's prima facie case for discrimination is lacking or that the adverse employment action was based upon legitimate, nondiscriminatory factors. Moreover, even if the court considered Moving Defendants arguments as to the tenth cause of action, the evidence presented does not warrant adjudication of such claim. Moving Defendants failed to establish that Marquez is not a member of a protected class as Marquez undisputably identifies as part Native American and failed to provide a cohesive argument establishing a legitimate, nondiscriminatory reason for the alleged adverse employment actions taken against Marquez.

As to Issues Nos. 13 through 15, the court admonishes Moving Defendants for failing to provide any argument in the moving papers in connection with the noticed issues or the facts set out in the separate statement pertaining to the tenth cause of action. As there is no substantive argument to guide the court in its determination of Issues Nos. 13 through 15, summary adjudication is unwarranted.

Accordingly, summary adjudication is denied as to Issues Nos. 12 through 15.

C.

Issues Nos. 4-8 – Retaliation for
Exercise of Rights to File Complaint (Fourth Cause of Action)

As to the fourth cause of action for retaliation under Labor Code section 1102.5, Moving Defendants contend that Marquez's allegations that he was terminated because

Marquez refused to falsify documents relating to a CALTRANS claim are unsupported as there is no evidence that Marquez's supposed refusal to falsify documents resulted in his termination. (MSJ, at pp. 12-13.) As to allegations of retaliation under FEHA within the fourth cause of action, Moving Defendants contend that such claim, similarly arising from Marquez's supposed refusal to falsify documents, fails as a matter of law based on Marquez's purported failure to exhaust his administrative remedies and the applicable statute of limitations. (Id., at pp. 13-14.)

The court finds that Moving Defendants' failed to carry their initial burden as to Marquez's retaliation cause of action. The arguments presented in connection with the fourth cause of action and Issues Nos. 4 through 8 are problematic and unpersuasive. The complaint asserts the retaliation claim based on Plaintiffs alleged filing of a CALTRANS complaint. (Complaint, ¶¶ 51-59.) There are no allegations within the fourth cause of action regarding Marquez's refusal to falsify documents as asserted in the moving papers. (*Laabs v. City of Victorville* (2008) 163 Cal.App.4th 1242, 1258 ["The complaint limits the issues to be addressed at the motion for summary judgment[/adjudication.]."].)

Moreover, similar to Issue No. 1, Moving Defendants again failed to correlate the noticed issues and the facts set out in the separate statement pertaining to the fourth cause of action with any of the arguments presented in their moving brief. Without a clear layout of the premises asserted in support of the issues to be adjudicated, the court cannot make an appropriate determination and refuses to expend time to decipher Moving Defendants' argument.[3]

Accordingly, summary adjudication is denied as to Issues Nos. 4 through 8.

D. Issue No. 2 – Wrongful Termination (Second Cause of Action)

As to the second cause of action for wrongful termination, the court finds that Moving Defendants failed to carry their initial burden demonstrating that no triable issue of fact exists. The court again admonishes Moving Defendants for failing to provide any specific argument in the moving papers in connection with the noticed issue or the facts set out in the separate statement pertaining to such claim. In fact, the moving papers

fail to address the second cause of action beyond a footnote arguing that as Marquez's discrimination and retaliation claims fail, the wrongful termination cause of action similarly fails. (MSJ, at p. 14, fn. 5.) However, as discussed above, the court finds such argument unpersuasive and no other grounds are asserted to warrant summary adjudication on the issue.

Accordingly, summary adjudication is denied as to Issue No. 2.

E.

Issues Nos. 1, 3, and 9-11 – Wage and Hour Claims (1st, 3rd, and 5th through 7th Causes of Action)

Moving Defendants argue that Marquez has no wage and hour claims, or derivative causes of action, as Marquez is an exempt salaried employee performing executive level tasks based on California Industrial Welfare Commission Wage Order No. 1-2001, codified in Code of Regulations, title 8, section 11010, governing working conditions in the manufacturing industry.[4] (MSJ, at pp. 16-20.)

A

determination whether an employee was exempt or non-exempt is "a mixed question of law and fact." (Heyen v. Safeway Inc. (2013) 216 Cal.App.4th 795, 817.) Whether an employee satisfies the elements of the exemption is a question of fact, and the appropriate manner of evaluating the employee's duties is a question of law. (Ibid.)

Code of Regulations, title 8, section 11010, sets out an "Executive Exemption," which states as follows:

A

person employed in an executive capacity means any employee:

(a)

Whose duties and responsibilities involve the management of the enterprise in which he/she is employed or of a customarily recognized department or subdivision thereof; and

(b)

Who customarily and regularly directs the work of two or more

other employees herein; and

(c)

Who has the authority to hire or fire other employees or whose suggestions and recommendations as to the hiring or firing and as to the advancement and promotion or any other change of status of other employees will be given particular weight; and

(d)

Who customarily and regularly exercises discretion and independent judgment; and

(e)

Who is primarily engaged in duties which meet the test of the exemption. The activities constituting exempt work and non-exempt work shall be construed in the same manner as such items are construed in the following regulations under the Fair Labor Standards Act effective as of the date of this order: 29 C.F.R. Sections 541.102, 541.104-111, and 541.115-116. Exempt work shall include, for example, all work that is directly and closely related to exempt work and work which is properly viewed as a means for carrying out exempt functions. The work actually performed by the employee during the course of the work week must, first and foremost, be examined and the amount of time the employee spends on such work, together with the employer's realistic expectations and the realistic requirements of the job, shall be considered in determining whether the employee satisfies this requirement.

(f)

Such an employee must also earn a monthly salary equivalent to no less than two (2) times the state minimum wage for full-time employment. Full-time employment is defined in Labor Code Section 515(c) as 40 hours per week.

(8 C.C.R. § 11010, subd. (1)(A)(1).)

In support, Moving

Defendants provide that Marquez worked for Crush as Vice President of Operations from 2010 until November 2019 when Crush terminated his employment. (UMF, No. 1.) Marquez was responsible for hiring, supervising employees, assigning tasks, ensuring employee safety, and maintaining client relationships. (Id., Nos. 8, 28-29.) Marquez reported directly to Rush, the owner and Chief

Executive Officer ("CEO") of Crush, and no other employee at Crush held a higher position than Marquez aside of Rush. (Id., No. 27.) The minimum annual salary to qualify for the Executive Exemption under California wage and hour law was approximately \$41,600.00 in 2017, calculated as \$10.00 per hour x 2 x 40 hours per week x 52 weeks; \$43,680.00 in 2018, calculated as \$10.50 per hour x 2 x 40 hours per week x 52 weeks; and \$45,760.00 in 2019, calculated as \$11.00 per hour x 2 x 40 hours per week x 52 weeks. (Id., Nos. 35-37.) Marquez earned at least \$68,474.00 a year from 2017 to 2019. (Id., No. 10.)

The court finds that Moving Defendants would have met their initial burden demonstrating that Marquez was an exempt employee extinguishing his wage and hour claims and derivative causes of action based on the evidence presented shifting the burden to Marquez.

The court also finds that Marquez would have failed to carry his burden to raise a triable issue of fact as the evidence provided fails to dispute the facts described above. Most notably, Marquez merely cites to his own declaration as evidence in dispute which is insufficient to raise an issue of fact alone. (UMF, No. 1; Amended Marquez Decl., ¶¶ 6-43; King v. United Parcel Service, Inc. (2007) 152 Cal.App.4th 462, 433 [determining that self-serving declarations are insufficient in creating a genuine issue of fact].)

Even if the court considered the declaration as sufficient, Marquez fails to establish that he did not earn the required monthly salary to qualify for the Executive Exemption as Marquez declares that he was paid at a base rate of \$29.00 per hour, more than double the minimum hourly pay at any given year between 2017 to 2019. (Amended Marquez Decl., ¶¶ 6-9.)[5]

The declaration also fails to dispute that Marquez's position as Vice President of Operation was merely a titular label or that his day-to-day duties did not include those which meet the test of the Executive Exemption. (Id., ¶¶ 10-12; 8 C.C.R. § 11010, subd. (1)(A)(1)(a)-(e).)

Nevertheless, the court finds that as Moving Defendants similarly failed to correlate the arguments presented in their motion to the noticed issues and facts set forth in the separate statement, the court will not grant summary adjudication on Issues Nos. 1, 3, and 9 through 11 to remain consistent with the rulings above.

However, the court will inquire at the hearing whether such issues should be adjudicated despite the deficiencies based on the compelling evidence presented in support.

F.

Issue No. 16 – Punitive Damages

Moving Defendants

argue that the request for punitive damages fails because there is no evidence of malice, fraud, or oppression and Marquez's causes of action fail for the reasons discussed above. (MSJ, at pp. 20-21.)

The court finds that

Moving Defendants fail to meet their initial burden. The request for punitive damages survives as none of Marquez's causes of action were adjudicated in favor of Moving Defendants. Moreover, even if summary adjudication was granted on the wage and hour causes of action and derivative claims for unfair and fraudulent business practices, the remaining causes of action could support the request for punitive damages.

Accordingly, summary adjudication is denied as to Issue No. 16.

IV.

CONCLUSION

Defendants Crush

Materials Corporation and Christine Rush's Motion for Summary Judgment, or in the alternative, Summary Adjudication as to Plaintiff Eric Marquez is DENIED.

[1]

The court exercises its discretion to consider the amended opposition and supporting documents. However, the court will not consider any argument or supporting document presented in conjunction with the first opposition in its analysis.

[2] The

court notes that the eighth cause of action for discrimination based on gender and ninth cause of action for discrimination based on sexual orientation are solely asserted by Davis against Defendants, thus not subject to this motion

pertaining Marquez. (Complaint, ¶¶ 80-87.)

[3]

In further evidence of

Moving Defendants' poor drafting, the court notes that it is unclear which noticed issue, and most importantly which cause of action, pertains to Section E of the moving brief arguing that Rush should not be held liable for any FEHA claim as an individual. (MSJ, at pp. 14-15.) As noted above, the court will not expend time piecing together Moving Defendants' argument for them.

[4] Moving

Defendants cite to Code of Regulations, title 8, section 11150 as the regulations applicable to the manufacturing industry. (MSJ, at pp. 16-19.) However, Section 11150 pertains to regulations for household occupations. (8 C.C.R. § 11150.) Although such discrepancy continues to demonstrate the moving parties' inarticulate writing, the court will substitute in the relevant authority for sake of argument.

[5] Marquez's

declaration cites to *Negri v. Koning & Associates* (2013) 216 Cal.App.4th 392 to argue that hourly compensation defeats the exemption even if the hourly rate is high. (Amended Marquez Decl., ¶ 8.) The court finds that *Negri v. Koning & Associates* does not support Marquez's assertion. "A salary is generally understood to be a fixed rate of pay as distinguished from an hourly wage." (*Negri*, supra, 216 Cal.App.4th at 397.) Fundamentally, salary is a form of compensation that "is not subject to reduction based upon the quantity or quality of work" performed. (*Id.*, at 399.) There is no indication based on the evidence provided in opposition that Marquez's base compensation fluctuated based on the quantity or quality of his work to dispute that he was a salaried employee.